IN THE CIRCUIT COURT '1' HELD IN ACCRA ON WEDNESDAY THE 23RD DAY OF JULY, 2025 BEFORE HER HONOUR CHRISTINA EYIAH-DONKOR CANN (MRS.), CIRCUIT COURT JUDGE

SUIT NO: C5/44/2024

MATILDA IDA HOSSFELD **TUCHMACHERSTRASSE 46,** **14482 PORTSDAM**	**PETITIONER**
VRS	
SETH AMLALO **BROSESTRABE 2,** **4772 BRANDENBURG** **AN DER HAVEL**	**RESPONDENT**

JUDGMENT

INTRODUCTION

The parties were married under the Marriage Ordinance on the 12th July, 2019 at the La Nkwantanang-Madina Municipal Assembly, Madina-Accra. Whilst the petitioner is a nursing student, the respondent is a Manager in an ICT Company. On the 15th March 2024, the petitioner filed a Petition for divorce and averred that the marriage has broken down beyond reconciliation and prayed the court for the following relief:

"a. That the marriage celebrated between the parties be dissolved."

Since this is a matrimonial cause, it is the direct provisions of the Matrimonial Causes Act, 1971 (Act 367) which should apply.

Section 2 (2) of the Matrimonial Causes Act, 1971 (Act 367) provides that:

"On a petition for divorce it shall be the duty of the court to inquire, so far as is reasonable, into facts alleged by the petitioner and the respondent."

The facts relied on by the parties must therefore be pleaded and placed before the court; otherwise, the court cannot perform its statutory duties under the above section of this Act. The particulars set out in detail the facts relied on by the petitioner and the respondent to establish the allegation that the marriage has broken down beyond reconciliation.

The relevant particulars of the petitioner's Petition are as follows:

"7. That the marriage between the parties has broken down beyond reconciliation due to Respondent's unreasonable behaviour.

PARTICULARS OF UNREASONABLE BEHAVIOUR

i. That the Respondent is very controlling.

ii. That the Respondent does not respect the Petitioner as a wife.

8. That due to the Respondent's disrespectful and controlling behaviour, the Petitioner moved out of their matrimonial home in October, 2022 and only returned when the respondent moved into another apartment

9. That the parties have not lived as husband and wife since October, 2022.

10. That the Petitioner is convinced that due to their irreconcilable differences, the marriage has broken down beyond reconciliation. The Respondent has evinced same through his actions.

11. That the Respondent has behaved in such a way that the Petitioner cannot reasonably be expected to live with him as husband and wife and the Respondent has caused Petitioner much stress, anxiety, distress, embarrassment and pain."

SUMMARY OF THE EVIDENCE BY THE PETITIONER

The petitioner testified herself via video link but did not call any witness.

In several decided cases, the superior courts have held that there are situations where the testimony of a single witness will suffice to prove a case.

In the case of **Kru vrs Saoud Bros & Sons (1975) 1 GLR 46**, the Court of Appeal held:

> *"Judicial decisions depend on the intelligence and credit and not the multiplicity of witnesses produced at the trial."*

Also, in the case of **Takoradi Flour Mills vrs Samir Faris (2005-2006) SCGLR,** the Supreme Court held affirming the position of the law that:

> *"(a) A tribunal of facts can decide an issue on the evidence of one party. A bare assertion on oath by a single witness might in the proper circumstance of a case be enough to form the basis of a judicial interpretation. The essential thing is that the witness is credible by the standard set in section 80 (2) of the Evidence Act, 1975."*

Again, in the case of **Ghana Ports and Harbours Authority vrs Captain Zavi & Nova Complex Ltd (2007-2008) SCGLR 806** the Supreme Court held thus:

> *"It is true that witnesses are weighed but not counted and that a whole host of witnesses are not needed to prove a particular point."*

The petitioner tendered in evidence the marriage certificate as Exhibit "A"

In this case, the respondent though duly served with the petitioner's Petition, together with setting down cause for trial, the petitioner's witness statement and several hearing notices of which services were duly proved, did not enter appearance or file his Answer to the petitioner's Petition. Neither did he appear in court to either give evidence or cross-examine the petitioner. He is therefore deemed to have waived his right to be heard, although there is an authority to the

effect that the right to be heard is an established common law principle, it is a right which should not be taken away unless the rules of court permit it to be so.

See: **Repubilc vrs High Court Exparte Salloum and Others (2012) 37 MLRG 34 SC**.

THE PETITIONER'S CASE

It is the evidence of the petitioner that she got married to the respondent on the 12th July, 2019 at Madina, in the Greater Accra Region of Ghana under the Marriage Ordinance (CAP 127). There are no issue(s) of the marriage. According to the petitioner, after the marriage, they cohabited in Potsdam, Germany but they later separated due to the challenges that arose in the course of the marriage. It is further the evidence of the petitioner that the marriage has broken down beyond reconciliation due to the respondent's unreasonable behaviour. She continued that upon their return to Germany after the marriage, the respondent began displaying excessively possessive and controlling behaviour. That the respondent will dictate to her how she should live her life and track her location whenever she stepped out of the house. According to the petitioner, the respondent's attitude was so excessive that she felt like she was being stalked by the respondent even while they lived together under the same roof. It is also the evidence of the petitioner that the respondent's behaviour escalated to the point where leaving the house became extremely difficult for her and the respondent eventually prohibited her from seeing her friends or spending time with them thereby taking away her social life. The petitioner continued that the respondent's behaviour escalated into consistent acts of disrespect and verbal abuse, including calling her derogatory names such as "bitch", and "stupid" over minor issues, alongside other demeaning insults and this excessive disrespect compelled her to leave the matrimonial home in October, 2022, and she only returned home after the respondent relocated to another apartment. The petitioner stated that they have not lived as husband and wife since October, 2022 and she has no intention of doing so.

As far as the petitioner is concerned, the marriage has broken down and she would never be reconciled with the respondent. She would not go back to the respondent and no more diligent efforts at reconciliation would succeed. The petitioner also prayed the court to dissolve the marriage.

FINDINGS OF PRIMARY FACTS

From the evidence on the record, the following facts are not in dispute:

1. That the parties were married under the ordinance on the 12th July, 2019 at the La Nkwantanang-Madina Municipal Assembly, Madina- Accra.
2. That the parties have no issue(s) in the marriage.

ISSUE FOR DETERMINATION

The **main issue** for determination is as follows:

Whether or not the marriage contracted between Matilda Ida Hossfeld, the petitioner herein and Seth Amlalo, the respondent herein on the on the 12th July, 2019 at the La Nkwantanang-Madina Municipal Assembly, Madina-Accra has broken down beyond reconciliation?

ANALYSIS OF THE RELEVANT SECTIONS OF THE MATRIMONIAL CAUSES ACT, 1971 (ACT 367)

Before I deal with the issues, I now wish to set out the relevant sections of the Matrimonial Causes Act, 1971 (Act 367) namely sections 1 (2), 2 (1), and 2 (3).

The only ground upon which a marriage may be dissolved is where the petitioner proves that the marriage has broken down beyond reconciliation.

Section 1 (2) of the Matrimonial Causes Act, 1971 (Act 367) provides thus:

> *"The sole ground for granting a petition for divorce shall be that the marriage has broken down beyond reconciliation."*

The grounds upon which a marriage would be said to have broken down beyond reconciliation are six (6) and the proof of one or more of them to the satisfaction of the Court may be a valid ground to the dissolution of the marriage. The six grounds are provided in section 2 (1) of the Matrimonial Causes Act, 1971 (Act 367). They are as follows:

> *"2 (1) For the purpose of showing that the marriage has broken down beyond reconciliation the petitioner shall satisfy the court of one of the following facts:*
>
> *a. That the respondent has committed adultery and by reason of the adultery the petitioner finds it intolerable to live with the respondent;*
>
> *b. That the respondent has behaved in a way that the petitioner cannot reasonably be expected to live with the respondent;*
>
> *c. That the respondent has deserted the petitioner for a continuous period of at least two years immediately preceding the presentation of the petition.*
>
> *d. That the parties to the marriage have not lived as husband and wife for a period of at least two years immediately preceding the presentation of the petition and the respondent consents to the grant of a decree of divorce, provided that the consent shall not be unreasonably withheld, the Court may grant a petition for divorce under this paragraph despite the refusal;*
>
> *e. That the parties to the marriage have not lived as husband and wife for a continuous period of at least five years immediately preceding the presentation of the petition; or*
>
> *f. That the parties to the marriage have, after diligent effort, been unable to reconcile their differences.*

Under section 2 (3) of the Matrimonial Causes Act, 1971 (Act 367):

"Although the Court finds the existence of one or more of the facts specified in subsection (1), the Court shall not grant a petition for divorce unless it is satisfied, on all the evidence, that the marriage has broken down beyond reconciliation."

BURDEN ON THE PETITIONER

It is a general principle of law that he who asserts must prove. This general principle has been given both statutory expressions at section, 10 (1) and (4) of the Evidence Act, 1975 (NRCD 323), and judicial pronouncements.

In the case of **Ababio v. Akwasi 111 (1995) 2 GBR 774**, the Court held that:

"The general principle of law is that it is the duty of the plaintiff to prove his case, i.e. he must prove what he alleges. In other words, it is the party who raises in his pleadings an issue essential to the success of the case who assumes the burden of proving it. The burden only shifts to the defence to lead sufficient evidence to tip the scales in his favour when on a particular issue the plaintiff leads some evidence to prove his claim. If the defendant succeeds in doing this he wins: if not he loses on that particular issue."

See also: **Bisi v Tabiri [1987-1988] I GLR 360**

Ackah v. Pergah Transport Limited & Others [2010] SCGLR 732.

In a petition for divorce, the burden that is cast on a petitioner is to lead sufficient evidence to enable a finding of those facts in issue to be made in her favour as required by sections 10 and 14 of the Evidence Act, 1975 (NRCD 323).

See: **Dzaisu v Ghana Breweries Limited [2009] 6 GMJ 111 S.C**

Sections 11 (4) and 12 (1) of the Evidence Act, 1975 (NRCD 323) provides that the standard burden of proof in all civil matters is proof by the preponderance of probabilities and there is no exception to it except where the issue to be resolved in the civil suit borders on criminality such as fraud and forgery.

The Supreme Court also in the case of **Adwubeng v Domfeh [1996-97] SCGLR 660** unambiguously resolved the question of standard burden of proof.

In the case of **African Mining Services v Larbi [2010-2012] GLR 579**, the Court held that the burden of persuasion in civil matters requires the person who has the evidential burden to discharge, to produce sufficient evidence such that a reasonable mind, such as this Court, will come to the conclusion that the existence of the fact is more probable.

It is therefore the petitioner's duty as required by law to produce the evidence of the facts in issue such that a reasonable mind, such as this Court, will come to the conclusion that from the existence of the facts, it is more probable that the marriage has broken down beyond reconciliation and that duty must be satisfactorily discharged.

Furthermore, the ground upon which the petitioner herein seeks the dissolution of the marriage contracted between herself and the respondent is unreasonable behaviour by the respondent. Therefore, the onus is on her to lead cogent and credible evidence in proof of her allegation.

ANALYSIS OF THE EVIDENCE ON RECORD

ISSUE

Whether or not the marriage contracted between Matilda Ida Hossfeld, the petitioner herein and Seth Amlalo, the respondent herein on the 12th July, 2019 at the La Nkwantanang-Madina Municipal Assembly, Madina- Accra has broken down beyond reconciliation?

UNREASONABLE BEHAVIOUR BY THE RESPONDENT

The petitioner in paragraph 7 of her Petition averred that the respondent has behaved unreasonably towards her in a way that she cannot reasonably be expected to live with him by:

i. being very controlling and

ii. disrespectful towards her as a wife.

Therefore the petitioner had the burden of leading cogent and credible evidence in proving the various acts of unreasonable behaviour against the respondent.

The petitioner further testified to the fact that the respondent has behaved unreasonably towards her in a way that she cannot reasonably continue to live with him. It is the case of the petitioner that, upon their return to Germany after the marriage, the respondent began displaying excessively possessive and controlling behaviour. That the respondent will dictate to her how she should live her life and track her location whenever she stepped out of the house. According to the petitioner, the respondent's attitude was so excessive that she felt like she was being stalked by the respondent even while they lived together under the same roof. It is also the evidence of the petitioner that the respondent's behaviour escalated to the point where leaving the house became extremely difficult for her and the respondent eventually prohibited her from seeing her friends or spending time with them thereby taking away her social life. The petitioner continued that the respondent's behaviour escalated into consistent acts of disrespect and verbal abuse, including calling her derogatory names such as "bitch", and "stupid" over minor issues, alongside other demeaning insults and this excessive disrespect compelled her to leave the matrimonial home in October, 2022, and she only returned home after the respondent relocated to another apartment. The petitioner stated that they have not lived as husband and wife since October, 2022 and she has no intention of doing so.

From the totality of the evidence on record, this court therefore finds as a fact that the respondent indeed has behaved unreasonably towards the petitioner by displaying excessively possessive and controlling behaviour, dictating to the petitioner how she should live her life and tracking her location whenever she stepped out of the house thereby making the petitioner feel like she was being stalked by the respondent even while they lived together under the same roof,

prohibiting the petitioner from seeing her friends or spending time with them thereby taking away her social life, being consistently disrespectful towards the petitioner and being verbally abusive to the extent of calling her derogatory names such as "bitch", and "stupid" over minor issues, alongside other demeaning insults thereby, compelling the petitioner to leave the matrimonial home in October, 2022.

As indicated supra, the respondent though duly served with the petitioner's Petition, together with setting down cause for trial, witness statement of the petitioner and several hearing notices of which services were duly proved, did not enter appearance or file his Answer to the petitioner's Petition. Neither did he appear in court to either give evidence or cross-examine the petitioner. This also goes to show that the respondent is indeed an unreasonable man.

I must also confess that no woman, no matter how large her heart can pull along with a husband who is excessively possessive and controlling, dictates to her how she should live her life and tracks her location whenever she steps out of the house thereby making her feel like she was being stalked by him even while they lived together under the same roof, prohibits her from seeing her friends or spending time with them thereby taking away her social life, being consistently disrespectful towards her and verbally abuses her to the extent of calling her derogatory names such as "bitch", and "stupid" over minor issues, alongside other demeaning insults thereby compelling her to leave the matrimonial home. The conduct of the respondent in the view of this court falls very far short of that of a reasonable man.

From the totality of the evidence on record, this court finds as a fact that the respondent has behaved in such a way that the petitioner cannot reasonably be expected to continue to live together with him.

The petitioner proved her case by the preponderance of probabilities that the respondent has behaved unreasonably towards her in a way that she cannot

reasonably be expected to live with him as provided under section 2 (1) (b) of the Matrimonial Causes Act, 1971 (Act 367) and this court holds same.

The next question to consider is the requirement of section 2 (3) of the Matrimonial Causes Act, 1971 (Act 367) whether the marriage between the petitioner and the respondent has broken down beyond reconciliation.

On a proper construction of this sub-section of the act, the court can still refuse to grant a decree even when one or more of the facts set in section 2 (1) of the Matrimonial Causes Act, 1971 (Act 367) have been established. It is therefore incumbent upon a court hearing a divorce petition to carefully consider all the evidence before it; for a mere assertion by one party that the marriage has broken down will not be enough.

See: **Dictum of Bagnall J in the case of Ash v. Ash [1972] 1 ALL ER 582 at page 586.**

From the evidence on record, the parties to the marriage have not lived together as husband and wife from October, 2022 to date. There is therefore no indication that the parties are prepared or willing to cooperate once again to find a solution to their differences. The court finds that the marriage has broken down and there is no hope or reconciliation at this stage as the petitioner herself has told this court and it is better for this court to dissolve this marriage so that the parties can go their separate ways and be put out of their miseries.

To insist that the petitioner and the respondent continue to live together as man and wife would be turning a contract of marriage into one of slavery regardless of the psychological and emotional trauma on the parties or one of them and allowing this marriage to strive on hopelessly, helplessly, and lack of trust. This is because matrimonial causes are unique because they involve two persons who are physically, emotionally and spiritually involved with each other unlike other causes of action like land cases, contract, constitutional, chieftaincy etc. which do

not involve intimacy between two people. No doubt the Bible declares the unique relationship as the two becoming one flesh.

I cannot but agree with *Osei-Hwere* J (*as he then was*) in the case of **Donkor v. Donkor (1982-83) GLR 1156 at page 1158** as follows:

"The Matrimonial Causes Act (1971) Act 367 does not permit spouses married under the Ordinance to come to pray for dissolution of a marriage just for the asking. Where the court is satisfied from the conduct of the parties that the marriage has in truth and in fact broken down beyond reconciliation it cannot pretend and insist that they continue as man and wife. To do so would be turning a contract of marriage into one of slavery regardless of the psychological effect on the parties or one of them."

The court finds and holds from the totality of the evidence on record together with the exhibit that, the marriage contracted between Matilda Ida Hossfeld, the petitioner herein and Seth Amlalo, the respondent herein on the 12th July, 2019 at the La Nkwantanang-Madina Municipal Assembly, Madina-Accra has broken down beyond reconciliation and the justification is that from the evidence the respondent has behaved in a way that the petitioner cannot reasonably be expected to live with him.

Thus, a *prima facie* case has been made by the petitioner that warrants the dissolution of the marriage. The requirements of section 1 (2) of the Matrimonial Causes Act, 1971 (Act 367) has thus been met by the petitioner.

I hereby declare the marriage contracted between Matilda Ida Hossfeld, the petitioner herein and Seth Amlalo, the respondent herein on the 12th July, 2019 at the La Nkwantanang-Madina Municipal Assembly, Madina-Accra with Certificate Number LANMMA/MC/160 and Licence Number LANMMA/392/2019 dissolved.

CONCLUSION

1. The marriage solemnized between Matilda Ida Hossfeld, the petitioner herein and Seth Amlalo, the respondent herein on the 12th July, 2019 at the La Nkwantanang-Madina Municipal Assembly, Madina-Accra with Certificate

Number LANMMA/MC/160 and Licence Number LANMMA/392/2019 is dissolved on the ground that it has broken down beyond reconciliation.

2. No order as to cost.

COUNSEL

RAYMOND QUAYE FOR THE PETITIONER PRESENT

PETITIONER ABSENT

RESPONDENT ABSENT

(SGD)

H/H CHRISTINA EYIAH-DONKOR CANN (MRS.)

(CIRCUIT COURT JUDGE)